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CASE #	CASE NAME	HEARING NAME
CVRI2405136	DIAZ VS GUTIERREZ	MOTION TO ENFORCE SETTLEMENT

Tentative Ruling:

Hearing is vacated as moot. On 6/11/26, Plaintiffs filed with the court a Request for Dismissal the entire action.

As a matter of fundamental California civil procedure, a voluntary dismissal of an entire action deprives the court of both subject matter and personal jurisdiction.

Under the well-settled holdings in *Sanabria v. Embrey* (2001) 92 Cal. App. 4th 422, and *Paniagua v. Orange County Fire Auth* (2007) 149 Cal. App. 4th 83, once a plaintiff files a voluntary dismissal, the court's power to govern the dispute is extinguished.

Consequently, any subsequent orders issued by the court following such a dismissal are not merely erroneous, but are void for lack of subject matter jurisdiction. This loss of authority is absolute and effective immediately upon the tender of the dismissal to the clerk. A voluntary dismissal is effectively treated as a "judgment" for purposes of starting the post-dismissal time window to file a motion for attorney fees. *Sanabria v. Embrey*, supra.

Strictly speaking, once the dismissal is effective, the court is stripped of jurisdiction to take any action other than addressing specific ancillary issues, such as attorney fees and costs, or—critically—addressing the *validity* of the dismissal itself.